

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

# THIRD SECTION

# DECISION

Application no. 19264/13
Dmitriy Borisovich SAKHAROV and
Sergey Vladimirovich SOROKIN against Russia
and 10 other applications
(see appended table)

The European Court of Human Rights (Third Section), sitting on 24 November 2022 as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants were represented by Mr E. Mezak, a human rights defender from Syktyvkar.

The applicants' complaints under Article 11 of the Convention concerning the restrictions on location, time or manner of conduct of public events were communicated to the Russian Government ("the Government"). In some of the applications, complaints based on the same facts were also communicated under Article 13 of the Convention (see the appended table).

On 20 March 2014 Mr A. Ostrovskiy, the second applicant in application no. 37260/13, died. By letter of 14 January 2015 his daughter Ms E. Ostrovskaya expressed her interest to pursue the proceedings before the Court in his stead. The Government did not comment on this matter.

# THE LAW

## A. Joinder of the applications

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

## B. Complaints under Article 11 of the Convention (restrictions on location, time or manner of conduct of public events) and Article 13 of the Convention (lack of effective domestic remedies)

The applicants complained about the restrictions imposed by the authorities on the location, time or manner of conduct of public events and the absence of an effective domestic remedy in that regard. They relied, expressly or in substance, on Articles 11 and 13 of the Convention.

The Court does not consider it necessary to address the question as to the *locus standi* of Ms E. Ostrovskaya in the proceedings before it because the applications are in any event inadmissible for the following reasons.

The Court observes that the applicants challenged the decisions of the Syktyvkar City Administration refusing to approve the locations of their public events in the domestic courts after the planned dates of their public events. The Court has already found in *Alekseyev v. Russia* (nos. 4916/07 and 2 others, § 99, 21 October 2010) that the judicial remedy of a post-hoc character the applicants had recourse to was incapable of providing adequate redress in respect of the alleged violations of Article 11 of the Convention. It subsequently found a violation of Article 13 of the Convention owing to the absence of an effective domestic remedy (ibid., § 100). The applicants therefore should have been aware of the ineffectiveness of the judicial review as a remedy in respect of their complaints so as to reasonably anticipate the application of the six-month requirement in their case (see, for similar approach, *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 14-16, 27 November 2018). Accordingly, they should have lodged their complaints within six months of the date of the Syktyvkar City Administration's decisions refusing to approve the locations of their public events (see *Komarova v. Russia* (dec.) [Committee], no. 44570/11, § 18, 26 May 2020).

It follows that the applications are inadmissible for non-compliance with the six-month rule and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

For these reasons, the Court, unanimously,

*Decides* to join the applications;

*Declares* the applications inadmissible.

Done in English and notified in writing on 15 December 2022.

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|---|---|
| Viktoriya Maradudina | Darian Pavli |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (Restrictions on location, time or manner of conduct of public events)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Location<br>Date of the public event planned | Restrictions applied | Decision by local authority<br>Name of local authority<br>Date | Other complaints under well-established case-law | Final domestic decision (type of procedure)<br>Date<br>Name of the court |
|---|---|---|---|---|---|---|---|
| 1. | 19264/13<br>09/02/2013 | **Dmitriy Borisovich SAKHAROV**<br>1961<br><br>**Sergey Vladimirovich SOROKIN**<br>1958 | Stefanovskaya square<br>Syktyvkar<br><br>04/02/2012 | Proposal to change the location, general prohibition on holding public events at certain locations (near the court buildings) | Syktyvkar City Administration<br>20/01/2012 | — | Notification procedure:<br>07/03/2013<br>Supreme Court of the Komi Republic |
| 2. | 37260/13<br>07/05/2013<br>(8 applicants) | **Vladimir Vladimirovich ZUBKOV**<br>1974<br><br>**Aleksandr Borisovich OSTROVSKIY**<br>1964<br>Deceased in 2014<br><br>**Aleksandr Fedorovich SHCHIGOLEV**<br>1961<br><br>**Igor Valentinovich SAZHIN**<br>1963<br><br>**Leonid Aleksandrovich ZILBERG**<br>1962<br><br>**Vera Petrovna TERESHONKOVA**<br>1958<br><br>**Anastasiya Sergeyevna GRUMAND**<br>1993<br><br>**Anton Aleksandrovich PAKHOMOV**<br>1990 | Teatralnaya Square<br>Syktyvkar<br><br>10/12/2011 | Proposal to change the location | Syktyvkar City Administration<br>08/12/2011 | — | Notification procedure:<br>08/11/2012<br>Supreme Court of Komi Republic |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Location<br>Date of the public event planned | Restrictions applied | Decision by local authority<br>Name of local authority<br>Date | Other complaints under well-established case-law | Final domestic decision (type of procedure)<br>Date<br>Name of the court |
|---|---|---|---|---|---|---|---|
| 3. | 50115/13<br>17/06/2013 | **Dmitriy Borisovich SAKHAROV**<br>1961<br><br>**Sergey Vladimirovich SOROKIN**<br>1958 | Teatralnaya Square<br>Syktyvkar<br><br>04/02/2012 | Proposal to change the location | Syktyvkar City Administration<br>26/01/2012 | — | Notification procedure:<br>17/12/2012<br>Supreme Court of the Komi Republic |
| 4. | 3430/14<br>17/12/2013 | **Darya Vladimirovna CHERNYSHEVA**<br>1991<br><br>**Vyacheslav Sergeyevich SLYUSARYEV**<br>1986 | Lenina street<br>Syktyvkar<br><br>31/03/2013 | Proposal to change the location, general prohibition to hold LGBT event in view of the negative reaction of the society | Syktyvkar City Administration<br>25/03/2013 | — | Notification procedure:<br>17/03/2013<br>Supreme Court of the Komi Republic |
| 5. | 9733/14<br>14/01/2014 | **Olga Aleksandrovna KRUGLOVA**<br>1984<br><br>**Aleksandr Aleksandrovich NITCHENKO**<br>1984 | Syktyvkar Several manifestations planned between<br>14/09/2012 and 18/09/2012;<br>21/09/2012 and 25/09/2012;<br>28/09/2012 and 02/10/2012;<br>05/10/2012 and 12/10/2012;<br>13/10/2012 and 16/10/2012 | Proposals to change the locations | Syktyvkar City Administration<br>05/09/2012;<br>12/09/2012;<br>20/09/2012;<br>27/09/2012;<br>04/10/2012;<br>05/10/2012 | Art. 13 – lack of an effective remedy in domestic law in relation to Article 11 complaint | Notification procedure:<br>15/07/2013<br>Supreme Court of the Komi Republic |
| 6. | 10205/14<br>21/01/2014<br>(3 applicants) | **Igor Valentinovich SAZHIN**<br>1963<br><br>**Semen Alekseyevich TERESHONKOV**<br>1982<br><br>**Marina Sergeyevna SEDOVA**<br>1988 | Stefanovskaya Square<br>Syktyvkar<br><br>17/06/2013 | Proposal to change the location | Syktyvkar City Administration<br>11/06/2013 | — | Notification procedure:<br>16/12/2013<br>Supreme Court of the Komi Republic |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Location<br>Date of the public event planned | Restrictions applied | Decision by local authority<br>Name of local authority<br>Date | Other complaints under well-established case-law | Final domestic decision (type of procedure)<br>Date<br>Name of the court |
|---|---|---|---|---|---|---|---|
| 7. | 11907/14<br>27/01/2014<br>(3 applicants) | **Natalya Alekseyevna BOYARINTSEVA**<br>1975<br><br>**Olga Aleksandrovna KRUGLOVA**<br>1984<br><br>**Alena Aleksandrovna GALINSKAYA**<br>1982 | Stefanovskaya Square<br>Syktyvkar<br><br>24/06/2013 | Proposal to change the location; general prohibition on holding public events at certain locations (near the court buildings) | Syktyvkar City Administration<br>18/06/2013 | Art. 13 – lack of an effective remedy in domestic law in relation to Article 11 complaint | Notification procedure:<br>16/12/2013<br>Supreme Court of the Komi Republic |
| 8. | 12927/14<br>28/01/2014<br>(4 applicants) | **Tatyana Andreyevna KOROBOVSKAYA**<br>1984<br><br>**Dmitriy Sergeyevich PATOV**<br>1986<br><br>**Viktor Yevgenyevich DUDIN**<br>1957<br><br>**Pavel Vladimirovich LOGOVSKIY**<br>1982 | Stefanovskaya Square<br>Syktyvkar<br><br>20/06/2013;<br>21/06/2013;<br>23/06/2013. | Proposals to change the locations; general prohibition on holding public events at certain locations (near the court buildings) | Syktyvkar City Administration<br>18/06/2013 | — | Notification procedure:<br>26/12/2013<br>Supreme Court of the Komi Republic |
| 9. | 44802/14<br>28/05/2014 | **Svetlana Vladimirovna UVARKINA**<br>1975<br><br>**Marina Sergeyevna SEDOVA**<br>1988 | Square in front of the Prosecutor's Office<br>Syktyvkar<br><br>04/06/2013 | Proposal to change the location | Syktyvkar City Administration<br>30/05/2013 | — | Notification procedure:<br>28/11/2013<br>Supreme Court of the Komi Republic |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Location<br>Date of the public event planned | Restrictions applied | Decision by local authority<br>Name of local authority<br>Date | Other complaints under well-established case-law | Final domestic decision (type of procedure)<br>Date<br>Name of the court |
|---|---|---|---|---|---|---|---|
| 10. | 58163/14<br>16/07/2014<br>(4 applicants) | **Aleksandr Valeryevich ZHIVOTKO**<br>1973<br><br>**Olga Aleksandrovna KRUGLOVA**<br>1984<br><br>**Yuliya Borisovna PLOTNIKOVA**<br>1981<br><br>**Elvira Viktorovna BEREZA**<br>1986 | Stefanovskaya Square<br>Syktyvkar<br><br>05/07/2013;<br>10/07/2013 | Proposals to change the locations; general prohibition on holding public events at certain locations (near the court buildings) | Syktyvkar City Administration<br>01/07/2013 | — | Notification procedure:<br>16/01/2014<br>Supreme Court of the Komi Republic |
| 11. | 2329/15<br>08/05/2013 | **Aleksandr Aleksandrovich NITCHENKO**<br>1984 | Several locations<br>Syktyvkar<br><br>12/05/2012;<br>22/05/2012;<br>03/06/2012;<br>08/06/2012;<br>09/06/2012. | Proposals to change the locations | Syktyvkar City Administration<br>28/04/2012;<br>11/05/2012;<br>22/05/2012;<br>01/06/2012;<br>30/05/2012. | — | Notification procedure:<br>16/01/2013<br>Supreme Court of the Komi Republic<br><br>23/08/2012<br>Supreme Court of the Komi Republic (public event of 09/06/2012) |